

SENATE BILL 1658

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 40 and Title 55, Chapter 10, relative to driving
under the influence.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-402, is amended by deleting subdivision (b)(1) and substituting:

(1)

(A) The court shall enhance a person's sentence by a mandatory minimum period of incarceration of thirty (30) days if a person is convicted of a violation of § 55-10-401, and at the time of the offense the person was:

(i) Accompanied by a child under eighteen (18) years of age; or

(ii) Within a marked school zone and a warning flasher or flashers were in operation.

(B) The incarceration enhancement in this subdivision (b)(1) must be served in addition to any period of incarceration received for the violation of § 55-10-401.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.